

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2024CUPP027042: MALK MEDHT vs NEWREZ, LLC
07/16/2026 in Department 21
Motion for Summary Judgment

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiff’s Motion for Summary Adjudication (*Opposed*)

Tentative Ruling: Defendant NewRez, LLC dba Shellpoint Mortgage Servicing’s motion for summary judgment is GRANTED.

Undisputed & Established: UMF Nos. 1-11, 13, 15, 16, & 18. UMF Nos. 12 & 17 are established only as to the specific allegations addressed by the cited admissions. UMF No. 14 is established to the extent NewRez owed no duty to warn of, remove, or remedy the alleged hazard and breached no duty alleged in the complaint.

These established facts negate essential elements of Plaintiff’s premises-liability claim, including possession or control, dangerous condition, notice, causation, and damages, and essential elements of the negligence claim, including duty, breach, causation, and damages. Plaintiff has submitted no evidence raising a triable issue of material fact.

Summary adjudication is therefore granted as to both causes of action. Because those are the only causes of action alleged against NewRez, summary judgment is entered in NewRez’s favor and against Plaintiff.

Defendant shall submit a proposed judgment. This ruling does not dispose of the pending cross-complaint.

Counsel for Defendant to give notice within two (2) court days.